

**IN THE CIRCUIT COURT OF COOK COUNTY, ILLINOIS
COUNTY DEPARTMENT, CHANCERY DIVISION**

LUCAS GUARIGLIA, individually and derivatively on)
behalf of ROWBOAT CREATIVE, LLC, a Delaware)
limited liability company,)

Plaintiff,)

v.)

Case No. 24 CH 00720

JOSEPH ZANGRILLI,)

Defendant,)

And)

ROWBOAT CREATIVE, LLC,)

Necessary Party Defendant.)

**PLAINTIFF'S MOTION TO ORDER DEFENDANT TO TURN
OVER TO RECEIVER ALL INFORMATION NECESSARY TO
ACCESS COMPANY ACCOUNTS AND DATA STORAGE PLATFORMS**

Plaintiff, Lucas Guariglia ("Guariglia"), individually and derivatively on behalf of Rowboat, LLC ("Rowboat"), by and through his attorneys, moves this Court to order the Defendant Joseph Zangrilli to turn over all information necessary to access Rowboat accounts and data storage platforms. In support of this motion, Guariglia states:

1. Guariglia filed the instant suit stemming from the conduct of Zangrilli, a 50/50 member in Rowboat, which resulted in deadlock and imminent threat to the ongoing viability of the business of the company.

2. In conjunction with the complaint, Guariglia filed an emergency motion for temporary restraining order and to appoint a receiver on an interim basis to address immediate issues necessary to preserve company assets and continue the business.

3. On February 14, 2024, this Court appointed Ryan Hayes and Rally Capital to act as Receiver, including to assess the condition of the business, safeguard company assets, and make necessary business decisions.

4. Subsequently, the Receiver was given authority to proceed with liquidation and sale of the company's assets. To date, the process is almost complete, with the exception of the sale of certain Rowboat assets to the only offeror, Guariglia, which offer this Court has authorized the Receiver to accept.

5. To facilitate this transaction, and underlying due diligence, this Court, following the last report by the Receiver, ordered *inter alia* the following information to be provided (the "General Access Information"):

3. The Plaintiff and Defendant Joseph Zangrilli are ordered to fully cooperate with the Receiver to provide immediate access (including administrative access and all passwords) to all ROWBOAT emails and email accounts, URLs, data storage, video footage, customer information, Quickbooks, Google and similar accounts or data storage platforms.

See Exhibit 1, June 6, 2024 Order.

6. While Plaintiff complied with that order, seven weeks later Defendant has still failed and refused to turn over the General Access Information, inhibiting the Receiver's ability to perform its work and interfering with any sale transaction with Guariglia and potentially causing further damage to the company (such as the loss of value to be paid to the receivership estate by Guariglia).

7. This Court should order immediate turnover by Defendant of all General Access Information and the following specific information: unfettered administrative access to all Google platforms; passwords to all Rowboat emails including Defendants; GoDaddy log-in information

and full and unfettered access to IP domains, renewal dates and information; and Squarespace log-in and access information (the " Specific Access Information").

WHEREFORE, Lucas Guariglia respectfully requests that this Court enter an order requiring Defendant to immediately turn over the General Access Information and the Specific Access Information, as required by the Court's June 6, 2024 order, paragraph 3, to the Receiver, and for such other relief as this Court deems just.

Respectfully submitted,

LUCAS GUARIGLIA, individually and
derivatively on behalf of ROWBOAT CREATIVE,
LLC,

By: /s/ Alexander D. Marks
One of His Attorneys

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